

On behalf of: **Claimant**

Witness: **Harmeet Singh**

No. of Witness Statement: First

Exhibit: HS-1

Date: 5 January 2026

**THE DUBAI
INTERNATIONAL
FINANCIAL CENTRE
COURTS**

Claim No. ARB-____-2026

**IN THE COURT OF FIRST
INSTANCE**

**IN AN ARBITRATION CLAIM
AND IN THE ARBITRATION**

BETWEEN:

Global Transit

**Claimant/ Claimant in the
arbitration**

- and -

Atro International (FZE)

**Defendant/ Respondent in the
arbitration**

WITNESS STATEMENT OF HARMEET SINGH

I, Harmeet Singh, care of 600 North Bridge Road, #05-01, Parkview Square, Singapore 188778, state as follows:

1. I am the Chief Financial Officer of Global Transit Singapore Pte Ltd, a company in the same corporate group as the Claimant, Global Transit, which is authorised to negotiate, execute and perform contracts on behalf of the Claimant. I am and have at all times been the Claimant's key representative throughout SIAC Arbitration No. ARB322/24/SPJ ("**Arbitration**"), administered by the Singapore International Arbitration Centre ("**SIAC**"), against the Defendant, Atro International FZE, in which Blackstone & Gold LLC ("**BG**") acted for the Claimant. The Claimant and Defendant are collectively referred to as the "**Parties**".
2. Unless otherwise stated, the facts and matters stated herein are within my personal knowledge arising from my involvement in the Arbitration, or are derived from documents and records in the Claimant's possession. Insofar as the facts and matters stated herein are within my personal knowledge, they are true. Insofar as the facts and matters are not within my own personal knowledge, they are true to the best of my information and belief.
3. Nothing in this statement constitutes a waiver of legal privilege. Insofar as any document is referred to herein which would otherwise attract legal or other privilege from disclosure, there is no intention of waiving privilege as to any other related documents.
4. In this statement, I will be referring to a number of documents, which are collectively exhibited hereto and marked as "**HS-1**".
5. In this statement, I describe:
 - (a) this enforcement application (**I**);
 - (b) the Parties (**II**);
 - (c) the background to the dispute relevant to this application (**III**);
 - (d) the Arbitration (**IV**);
 - (e) the terms of the Award (**V**);
 - (f) the Defendant's failure to comply with the Award (**VI**); and
 - (g) the statement of post-award interest due (**VII**).

I. THE ENFORCEMENT APPLICATION

6. I make this witness statement in support of the Claimant's application ("**Enforcement Application**") for the recognition and enforcement of the final arbitral award dated 4 December 2025 ("**Award**"), issued in the Arbitration.
7. I am advised that the Enforcement Application is made pursuant to Articles 42(1) and 43 of DIFC Law No. 1 of 2008 ("**DIFC Arbitration Law**") and Article 14(A)(5) of Dubai Law No. 2 of 2025 ("**DIFC Courts Law**"), read together with Rules 43.61 to 43.75 of the Rules of the DIFC Courts ("**RDC**").
8. Pursuant to RDC 43.62, the Enforcement Application is made without notice in an Arbitration Claim Form filed on 5 January 2026 ("**Arbitration Claim**").

9. The Award was issued by an arbitral tribunal comprising a sole arbitrator, Ms Aarta Alkarimi (“**Tribunal**”). The Claimant commenced the Arbitration pursuant to the arbitration agreement (“**Arbitration Agreement**”) contained in Article 17 of the Clinker Sale Contract entered into between the Parties on or around 1 September 2023 (“**Clinker Sale Contract**”).
10. The Tribunal had issued a Decision on Jurisdiction dated 18 August 2025 and notified to the Parties on 21 August 2025 (“**Decision on Jurisdiction**”), determining (among other things) that it had jurisdiction in the Arbitration. The Award states that it “*shall be read together with the Decision on Jurisdiction, which is incorporated herein by reference and annexed to this Award*”.
11. In accordance with RDC 43.66(1) read with Article 42(3) of the DIFC Arbitration Law, certified copies of the Award and the Arbitration Agreement are exhibited at **HS-1 Tab 1**¹ and **HS-1 Tab 2**,² respectively.

II. THE PARTIES

12. The Claimant is Global Transit, a company incorporated under the laws of France, with its registered address at 38 Bd, Du Capitaine Geze, 13014 Marseille, France.
13. The Defendant is Atro International FZE, a company incorporated under the laws of the UAE as applicable to the Emirate of Dubai, with its registered address at Jafza South, LB18 Office 2407, PO Box 261630, Jebel Ali Free Zone, Dubai, UAE.

III. BACKGROUND TO THE DISPUTE

14. On or around 1 September 2023, the Claimant and the Defendant entered a contract, *i.e.*, the Clinker Sale Contract, pursuant to which the Seller/Claimant agreed to sell and deliver, and the Buyer/Defendant agreed to purchase and accept a total of approximately 50,000 metric tonnes (“**MT**”) of clinker in bulk (“**Goods**”).³
15. The factual background and the Parties’ respective positions are set out in detail at [49] to [126] of the Award. In brief:
 - (a) Under the Clinker Sale Contract, the Goods were to be delivered from Cam Pha Port in Vietnam, to the Chattogram and Mongla ports in Bangladesh between the period of 1 September 2023 to 31 October 2023. The parties agreed upon a price of US\$ 48.45 per metric tonne on cost and freight terms (the Clinker Sale Contract having incorporated the Incoterms 2010), with payment to be effected by a transferable deferred letter of credit for 90 days from the date of the relevant bills of lading.⁴
 - (b) The Claimant performed its obligations under the Clinker Sale Contract and shipped 55,000 MT of the Goods in accordance with the agreed terms. Payment was made by the Defendant to the Claimant in respect of 25,000 MT of Goods, but not the remaining 30,000 MT. The Claimant issued five invoices to the Defendant in respect of the outstanding payments for the remaining 30,000 MT of Goods; comprising four invoices in the amount of US\$ 333,093.75 each (totalling US\$ 1,332,375.00) and a fifth invoice in

¹ Certified copy of the Award (**HS-1 Tab 1**) The Decision on Jurisdiction is included within HS-1 Tab 1 (as part of/ annexed to the Award).

² Certified copy of the Clinker Sale Contract, including the Arbitration Agreement (**HS-1 Tab 2**)

³ [10], Award

⁴ [49] – [51], Award

the amount of US\$ 121,125.00.⁵ The total amount due and owing under the five invoices was US\$ 1,453,500.

- (c) Despite repeated communications and demands extending into January 2024, the Defendant failed to make payment of the invoiced sums when due.⁶
- (d) As a result of the Defendant's non-payment, a dispute arose between the Parties. By a demand notice dated 5 June 2024 from its counsel at the time, Holman Fenwick Willan, the Claimant called upon the Defendant to make payment of the outstanding amounts of US\$ 1,332,375.00, in respect of the first four invoices, but no payment was made.⁷
- (e) In light of the Defendant's continued non-payment and the Parties' failure to resolve the dispute amicably, the Claimant commenced arbitration pursuant to the Arbitration Agreement.⁸

IV. THE ARBITRATION

16. The Arbitration Agreement between the Parties is contained in Article 17 of the Clinker Sale Contract, which provides for arbitration under the auspices of the SIAC, to be held in Singapore, in the English language:

"Article 17. Arbitration

Both parties will make every effort to settle in an amicable way any dispute in connection with the interpretation or execution of this Contract.

If in spite of the above, if the parties do not reach an agreement, then all disputes arising in connection with the present Contract shall be finally settled under the Mediation Rules of the Singapore International Arbitration Centre.

Each party shall appoint an arbitrator, and the two arbitrators, in the event of disagreement, shall appoint a referee whose decision shall be final and binding upon both parties hereto.

The arbitration shall be held in Singapore and shall be in the English language, in accordance to the laws of England and Wales." (emphasis added)

17. Article 15 of the Clinker Sale Contract further provides that "*the validity, interpretation and performance of the contract are governed by the laws of England and Wales*".
18. The procedural history of the Arbitration is set out at [17] to [48] of the Award, with the earlier phase leading to the issuance of the Decision on Jurisdiction set out in the Decision on Jurisdiction itself (and not repeated in the Award). In brief:
- (a) On 16 July 2024, the Claimant filed a notice of arbitration. The arbitration was deemed to have commenced on 17 July 2024 and was registered by the SIAC as ARB322/24/SPJ.⁹ The Claimant sought

⁵ [54] and [60], Award

⁶ [57] – [59], Award

⁷ [63] – [64], Award

⁸ [18] and [65], Award

⁹ [18], Award

claims of US\$ 1,453,500 as the principal sum, being the total of the unpaid invoices, together with accrued interest of US\$ 198,898.86 (as of 8 September 2025), continuing at US\$ 298.66 per day at 7.5% per annum.

- (b) On 28 August 2024, the Defendant responded to the notice of arbitration, *inter alia*, objecting to jurisdiction,¹⁰ and on 9 September 2024, expressly confirmed that it was invoking a jurisdictional objection under Rule 28.1 of the SIAC Rules.¹¹ The Defendant's jurisdictional objections included contentions that (among other things): (i) the pre-arbitration negotiation wording had not been satisfied; (ii) the tribunal should comprise three members; and (iii) Singapore was not the seat / SIAC was not the agreed institution.¹²
- (c) On 8 November 2024, the SIAC informed the Parties that the President had determined that the arbitration shall be conducted in accordance with the Expedited Procedure pursuant to Rule 5 of the SIAC Rules.¹³
- (d) On 31 January 2025, the Tribunal was constituted by the appointment of Ms Aarta Alkarimi as sole arbitrator.¹⁴
- (e) The Tribunal issued the Decision on Jurisdiction dated 18 August 2025, which SIAC issued to the Parties on 21 August 2025, rejecting the Defendant's jurisdictional objections and determining (among other things) that the Tribunal had jurisdiction, that the pre-arbitration negotiation requirement had been reasonably complied with, and that the Parties had agreed to Singapore-seated arbitration under the SIAC Rules.¹⁵ To the best of my knowledge and belief, the Decision on Jurisdiction has not been challenged, set aside, stayed, or suspended, and the Defendant has not disclosed any pending proceedings to challenge it.
- (f) Following the Decision on Jurisdiction, the Tribunal issued directions for the further conduct of the Arbitration, including that it proceed on a documents-only basis.¹⁶
- (g) The Parties thereafter exchanged pleadings, evidence and written submissions in accordance with the Tribunal's directions.
- (h) On 22 October 2025, the Tribunal declared the proceedings closed.¹⁷

V. THE TERMS OF THE AWARD

19. On 4 December 2025, the Tribunal rendered the Award. SIAC notified the Parties on 6 December 2025.¹⁸

¹⁰ [19], Award

¹¹ [26] – [27], Decision on Jurisdiction

¹² [22 (a)] – [22(c)], Decision on Jurisdiction

¹³ [20], Award

¹⁴ [20], Award

¹⁵ [135] – [136], Decision on Jurisdiction

¹⁶ [35], Award

¹⁷ [47] – [48], Award

¹⁸ Email dated 6 December 2025 from SIAC to the Parties, enclosing the Award and a cover letter (**HS-1 Tab 3**)

The Tribunal held that the Claimant succeeded in full on its principal claim, and all of the Defendant's defences were dismissed.¹⁹ The Tribunal found the Defendant liable to pay the Claimant the principal sum of US\$ 1,453,500.00 representing the unpaid balance for shipments made.²⁰

20. In relation to interest, the Tribunal awarded simple pre-award interest at 7% per annum on (i) the sums of the first four invoices from 27 December 2023 to the date of the Award, and (ii) the fifth invoice sum from 3 October 2023 to the date of the Award.²¹
21. In relation to legal and other costs, the Tribunal recorded the costs payable by the Defendant to the Claimant towards reimbursement of the Claimant's legal and other costs of arbitration, costs of arbitration as fixed by the SIAC Registrar, and any other unpaid sums subject to 5.53% simple post award interest.²²
22. In the operative part at [187] of the Award, the Tribunal ordered the Defendant to pay the Claimant:
- (a) principal sum of US\$ 1,453,500.00 representing the unpaid balance for shipments made under the Clinker Sale Contract;
 - (b) interest on the sum of US\$ 1,332,375.00 at the simple rate of 7% per annum from 27 December 2023 to 4 December 2025;
 - (c) interest on the sum of US\$ 121,125.00 at the simple rate of 7% per annum from 3 October 2023 to 4 December 2025;
 - (d) the sum of SG\$ 48,170.00 as reimbursement of the Claimant's legal and other costs of this arbitration; and
 - (e) the sum of SG\$ 83,793.68 in respect of the costs of the arbitration (including SIAC's and the Tribunal's fees and expenses) as fixed by the SIAC Registrar;
23. In the operative part at [188] of the Award, the Tribunal further ordered that all sums awarded at [187(a)] – [187(e)] of the Award shall be payable within 30 days of the date of the Award, and shall thereafter carry simple interest at 5.33% per annum until payment in full.²³
24. To the best of my knowledge and belief, the Award has not been challenged, set aside, stayed or suspended before the courts of Singapore (the seat), and the Defendant has not disclosed any such proceedings.

VI. THE DEFENDANT'S FAILURE TO COMPLY WITH THE AWARD

25. On 22 December 2025, the Claimant's legal counsel, BG, issued a formal demand email upon the Defendant ("**Demand Email**") requiring compliance with the Award and setting out the amounts payable to the Claimant as determined at [187] of the Award,²⁴ namely:

¹⁹ [178], Award

²⁰ [158], Award

²¹ [166], Award

²² [185], Award

²³ [188], Award

²⁴ Email dated 22 December 2025 from the Claimant's counsel, BG, to the Defendant (**HS-1 Tab 4**)

- (a) principal sum of US\$ 1,453,500.00 representing the unpaid balance for shipments made under the Clinker Sale Contract;
 - (b) interest on the sum of US\$ 1,332,375.00 at the simple rate of 7% per annum from 27 December 2023 to the date of the Award, which amounts to US\$ 180,908.16;
 - (c) interest on the sum of US\$ 121,125.00 at the simple rate of 7% per annum from 3 October 2023 to the date of the Award, which amounts to US\$ 18,421.39;
 - (d) sum of SG\$ 48,170.00 as reimbursement of the Claimant's legal and other costs of the Arbitration; and
 - (e) sum of SG\$ 83,793.68 in respect of the costs of the arbitration (including the SIAC's and the Tribunal's fees and expenses) as fixed by the SIAC Registrar.
26. The Demand Email further notified the Defendant that the Award required payment of the above sums within 30 days of the date of the Award, *i.e.*, by **3 January 2026**.
27. Accordingly, the total outstanding as of 3 January 2026 is **US\$ 1,652,829.55** and **SG\$ 131,963.68**.
28. As at the date of this witness statement, the Defendant is in breach of the Award. The Defendant has failed to pay any part of the sums awarded. The Defendant has not deposited the awarded amounts and has neither sought nor obtained any extension of time for compliance.

VII.STATEMENT OF POST-AWARD INTEREST DUE

29. The Award provides that all sums awarded under [187(a)] – [187(e)] of the Award were payable within 30 days of the date of the Award, *i.e.*, 3 January 2026. The Award provides for post-award interest if the Defendant does not pay within the time stated in the Award.
30. The Claimant seeks to enforce the Award's post-award interest. Accordingly, for the purposes of RDC 43.76 and 43.77, the Claimant files a statement quantifying the post-award interest accruing under [188] of the Award. Accordingly, on behalf of the Claimant, I state as follows:
- (a) that post-award interest is simple (not compound);
 - (b) that post-award interest accrues after the expiry of 30 days from the date of the Award (*i.e.*, from 3 January 2026);
 - (c) that no rests are provided for;
 - (d) that the applicable rate is 5.33% per annum; and
 - (e) the total post-award interest accrued as at 5 January 2026 (being 2 days after 3 January 2026) is calculated below:

Currency	Base amount	Post-award interest
US\$	1,652,829.55	482.72
SG\$	131,963.68	38.54

(f) the daily post-award interest accrual after 5 January 2026, is calculated below:

Currency	Base amount	Daily accrual
US\$	1,652,829.55	241.36 per day
SG\$	131,963.68	19.27 per day

VIII. CONCLUSION

31. I confirm that I have disclosed all material facts in this witness statement.

32. In light of the above, I request the Court to make the order in the terms of the draft order filed with the Arbitration Claim.

SIGNED by the below-named)

HARMEET SINGH)

on this 5th day of January 2026)

in Singapore)

